Innovating the Electoral System for the Modern Era: A Proposal for Temporal Reform in the U.S. Presidential Election

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This paper advocates for the modernization of the United States Presidential electoral system. Focusing on the importance of electoral temporal properties, it suggests extending the national voting period from one day to three days. This extension is accompanied by the introduction of a real-time voting website, referred to as the Live Election Tracker (LET), which aims to enhance election transparency and increase civic engagement. The rationale for extending the voting period is outlined, emphasizing two improvement factors: 1) increased opportunity and 2) increased accessibility, which will have the overall effect of combating socioeconomic voter inequality. Addressing potential critiques, the paper provides an overview of the proposal for LET and solutions to possible critiques against the system.

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1. INTRODUCTION

Historically embedded in the United States electoral practice is the timing of Election Day, held on the first Tuesday after the first Monday in November. In contemporary society, however, the rigidity of the single-day voting system warrants a reevaluation.

The custom of a one-day election was first observed in 1848 with Taylor v. Cass[1]. In prior elections, states were allowed to hold elections within a 34-day period before the first Wednesday in December [10]. It quickly became apparent that this practice of this stretched-out voting period proved slightly problematic. For one, the prolonged voting period led to delayed decision-making, which affected the transition of power. The several weeks in which the votes were being cast and counted also led to a period of uncertainty and instability in the political landscape, which affected markets, governance, and overall public confidence and trust in the electoral process[10]. As such, to streamline the voting process and in hopes of overcoming these issues, Congress changed the voting system in 1945 to the one that most are familiar with today[1].

However, discourse in contemporary discourse has raised concerns about the scheduling of elections, particularly regarding the challenge faced by the working class in finding time to vote on weekdays. Notably, studies have identified the inconvenience of Election Day as a significant factor contributing to voter abstention– specifically, it has been found that gender, ethnic, and age discrepancies in voter turnout may be attributed to the timing of the election[16,17,26]. The government provided additional voting options to address this issue, such as early "in-person absentee voting" and mail-in ballots[3,9]. However, policies vary from state to state; for instance, some states, like Alabama, do not offer early voting options[3,4]. Furthermore, while some states require a legally recognized excuse for absentee ballots, others offer "no excuse" early voting option[3,4]. Even within states that offer early voting options, the period in which one can vote early is highly variable– for example, Virginia offers early voting up to forty-six days before election day, whereas other states, like Kentucky, only allow only five days before election day to mail in a vote early[3,4]. Thus, some eligible-to-vote citizens. are more disadvantaged than others when it comes to voting ease and accessibility, as it depends on state policy.

2. THE EXTENSION

I view this as inherently problematic– I believe eligible citizens should have equal access and opportunity to vote; as such, offering early voting options only benefits some and creates unfairness for those who are unable to participate in it. Thus, I suggest extending the official voting period from a single Election Day to a 72-hour period, encompassing Sunday through Tuesday (specifically, the Tuesday following the first Monday in November to acknowledge historical significance and uphold national tradition).

Firstly, voters today find it hard to vote within the hours of poll operation times, which usually open around 7 am and close at 8 pm[3,4,26]. The average American worker leaves home around 7:45 and returns at 7 pm for their 9-to-5 job, considering commuting[5]. Other individuals who work longer shifts, such as doctors or pilots, or those who have mandatory prior commitments, such as college, of-legal-age students, further are at a disadvantage when it comes to easily casting their ballot. As such, they prioritize individually perceived more pressing

matters and abstain from voting. Opening the polls on Sunday, a weekend would offer more opportunity for voters to cast their ballots as their schedules deem fit.

In the 18th century, it was estimated that around 90-95% of Americans identified as Christian, with less than 5% religiously unaffiliated[5,7,8]. As such, Sundays were respected as days of rest and worship. In light of this, it further meant that holding elections on Monday was unreasonable– especially on days in which transportation was inconvenient and lengthy; at least one open day for voters to travel was necessary to increase accessibility to the polls. Thus, to avoid traveling on Sabbath, Monday would not be a viable option. However, contemporary data show a significant shift in religious affiliation and observance in the United States[7]. In the modern day, a growing number of Americans identify as religiously unaffiliated or adhere to non-Christian religions, diminishing the cultural significance of Sunday as a day of religious observance[7]. As such, the historical rationale for avoiding Sunday elections due to religious observance may no longer be as relevant in modern society.

Further, dispersing the concentration of voters across three days would result in a greatly reduced waiting period, in turn increasing poll accessibility for the working citizen. According to the Pew Center for Research, black and other minority groups have to wait, on average, 20% longer than whites, and lower-income citizens voted less, on average, than the middle to upper class [7,23,26.] When surveyed, concerns related to transportation, accessibility to polling locations, and increased wait times emerged as prominent factors contributing to disparities in voter turnout. Upon closer examination of these findings, researchers discovered that the timing of Election Day disproportionately affected the lower class[23]. This group heavily depended on their day jobs to vote, and their commute time to and from work was significantly longer on average compared to the more affluent members of society, significantly affecting their ability to participate in voting[7,16,23]. Decreasing the wait times, as well as offering additional polling hours, will help disadvantaged voters by making the process easier for them to find time to vote.

In the next section, I'll acknowledge the possible critiques of this proposal. Interestingly, no country holds national elections for longer than a 24hr period. The criticism of the extended in-person voting system centers around the general concern of increased voter fatigue. A three-day voting period might exhaust voters, leading to feelings of public annoyance, irritation, and frustration. More so, there is already heightened apprehension regarding fraud and manipulation during single-day election periods; critics argue that prolonging the election period could worsen the risk of internal and external threats/disruptions.

3. REAL TIME VOTING

I believe that implementing a real-time voting system would help alleviate these objections, at least to some extent. The system proposal operates as follows: First, real-time broadcasting, where ballot votes are displayed live as they are submitted, would substantially reduce the opportunity to corrupt the votes and eliminate any concerns of perceived manipulation. Second, real-time broadcasting through an interactive online platform would help combat voter fatigue by keeping citizens actively engaged in the ongoing process.

My proposal operates as follows: First, all eligible voters will have access to a website similar to the one used for voter registration[3,4]. This website, the Live Election Tracker, or LET, will allow voters to follow the real-time voting polls through engaging graphs, illustrations, and animations. As ballots are cast, voters can watch how the poll numbers rise and fall.

4. LIVE ELECTION TRACKER (LET)

I believe this system would be advantageous in several ways.

A. Increase Transparency and Trust

Firstly, having a voting system that immediately displays the results of the ballots would increase transparency and improve public trust. As citizens would be able to see the immediate results as they come in, there is little room for paranoid conspiracy theories involving meddling with the ballots or the counts. As votes cast their ballots, their contribution would immediately be scanned, read, and transported to LET for the live broadcast. The reassurance that the public received the results as they occur in real-time may help facilitate voter trust in the system and the outcome results in themselves. Eliminating the "black box" period— the time between vote counting and the announcement of the officially certified outcome— would help reduce the dissemination of misinformation and general uncertainty among the American public. In this context, a real-time system would not only diminish the possibility of fraud and manipulation of the votes themselves but also reduce the perception of such manipulation ever occurring.

Furthermore, by obtaining information from an impartial government website, distrust and potential misinformation disseminated by media outlets could be mitigated.

B. Increase Voter Turnout

The implementation of a real-time voting system would not only encourage participation among individuals who were previously undecided about voting, but it would also instill a sense of autonomy and involvement in shaping the election outcome and foster greater feelings of trust in the political system among the voters. Thus, by providing immediate access to the voting results, higher voter turnout is more likely to occur, thereby ensuring that election outcomes more accurately reflect the authentic beliefs of the public.

LET would also increase civic engagement as users could "unlock" certain benefits after they vote, but only during the first two days. Potential incentives could include access to new site features, such as virtual tours of the White House, a badge for the user's online avatar, and access to new data insights. Since unlocking additional insights only occurs in the first 48 hours of the three-day process, it would incentivize voters to cast their ballots early on. It would be most practical for voters to try voting early on in the process, rather than just on the last day, to avoid the problems we currently observe in the current system, such as long voting wait lines.

There is the concern, however, that the motivation to vote should be out of intrinsic civic duty, and that materialistic incentivization is inherently problematic[16,20]. However, I believe that the allure of unlocking these trivial, short-term, intangible features serves more as a supplementary modem of incentive rather than altering the genuine beliefs or motivations of voters. In other words, these LET additions may merely be the tipping point so to speak, of convincing an on-the-fence voter to vote. In an analogy, Gomex et al. found that "when compared to normal conditions, rain significantly reduces voter participation by a rare of just 1% per inch, while an inch of snowfall decreases turnout by almost 0.5%"[19]. If something as trivial as the weather

conditions were to be, so to speak, the final straw determining whether somebody will or will not vote, in the same way, a trivial incentive, such as unlocking a new site feature, should be equally as acceptable.

C. Prevent Voter Fatigue and Educate Younger Demographics

Third, LET would be designed to engage and educate not only the demographic of eligible voters but also the younger, underaged citizens. Through colorful, easy-to-read-and-understand graphics and animations, the website would prevent voter fatigue by keeping observers engaged in the presented information (see Figures 1-4). One could toggle pages to see the results based on county, city, state, and at national scale. One graph may show how many people are voting at one time across the states. Perhaps another graph illustrates the wait times for the polls nearest to you. Another could be color-coded to show the party each state is leaning towards. Further, by offering interactive American history trivia quizzes and short educational shorts, the website would offer more than the ongoing election data but be civically educational. By extension, the small games, such as reciting the Pledge of Allegiance or naming all previous presidents, would help educate the public of all age demographics and refine basic citizenship knowledge Some citizens may never have gotten the chance to formally educate themselves in US history or politics due to financial or other reasons, and LET would help make such knowledge accessible in a way that does not make the learner feel intellectually inferior. This is helpful since, for voters to make educated assessments on political matters, they should be expected to inform themselves of the basic facts of the democratic system before performing their civic duty.

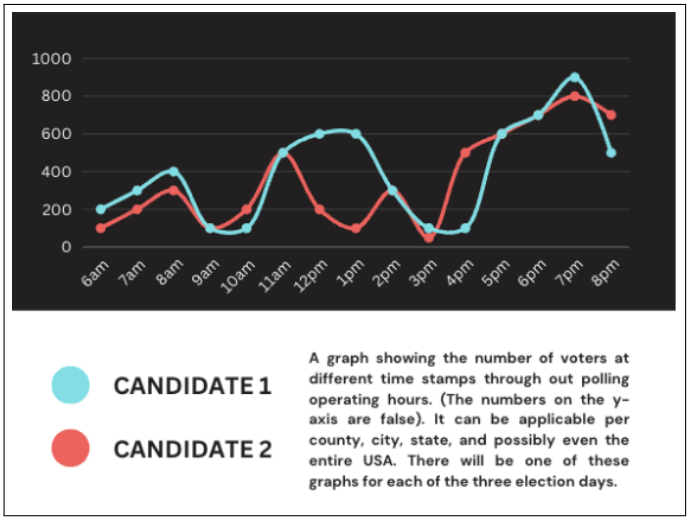


Fig. 1. Example of Graphical Display for LET.

Figure 2 shows an example figure.

D. Revive National Pride

Lastly, LET would assist in making the Presidential Election seem less like a day to dread and more like a national celebration, similar to the feelings of pride that the Fourth of July generates – or even that on the Superbowl. Over the past years, it has been increasingly felt by the general public that the presidential elections are a period of manipulation and corruption, of separation based on ideologies and beliefs, making the nation appear segregated, hostile, and aggressive[7]. The feeling of American



Fig. 2. Example of Graphical display for LET. Hovering the mouse over a county would show, in live-time, the turn out of the votes.

national pride has decreased rapidly over the twenty years[14,15]. In a 2022 survey, it was found that fewer than three in ten Americans were "extremely proud" to be American– an all-time low[14]. LET provides a means through which the transfer of political power and democracy as a whole can be commemorated.

5. COUNTER-ARGUMENTS

I have identified two flaws in LET. The first is the plausible inequality of access to the site. Some critics may claim that not everybody would have equal access to the online site. However, while I acknowledge that this inequality will most likely exist, it is important to note that the issue of unequal access goes beyond simply the realm of voting policy alone. Now, I do not claim that the issue of high voting costs for the disadvantaged should be sidelined or ignored, but rather that the use of LET would not, at least, introduce a new form of political inequality.

For example, under the current system, voting is notoriously low among the homeless for a variety of reasons, who, for the most part, lack the resources, education, transport, and home or device for registration[19]. As stated by Brennan, the poor have a "resources problem... poor in resources most useful to politics –time, money and connections"[19]. Some low-income citizens who do not have the financial resources to follow the election virtually or educate themselves politically will be further disadvantaged in the ease of performing civic duty. There is a strong relationship between education and the ability to be politically active[19]. Sidney Verba states that education makes people "more informed" and "more efficacious," making it "easier for them to see connections between their values/preferences and governmental action" [19]. Education also increases the store of resources necessary to be an effective democratic participant, and it is important to put individuals into the "networks of others who are politically active" [19] As the poor face more challenges in the gathering of political information and voting, they are typically less knowledgeable about politics, which in turn has an impact on their electoral participation1[19].

To combat this issue, however, I propose that volunteer organizations or shelters display the LET on a public screen; even if the homeless or socioeconomically disadvantaged are unable

to make it to the voting polls, LET can help them to a degree. Becoming politically aware and educated is the first step to becoming an effective democratic participant. Even if not voting, LET offers equal access– in the sense that everybody is receiving the same information from the same trustworthy source– to political education in an unbiased way. LET should be displayed on major TV broadcasts, on billboards, and across the city, making the information as accessible to the public as possible. As such, the concern about accessibility equality can be mitigated as such.

The second flaw I observe is the possibility of voter knowledge discrepancies during the voting period itself. There may be fear that the voters who enter the polls across different days will thus have varying degrees of information when entering the booths. For example, Voter A may vote on Day 1 when candidate A seems to be in the lead, whereas Voter B, who votes two days later, has more insight into how the direction of the election seems to be heading. This may cause concern as a form of inequality information and be perceived as a form of unfairness. The most simple way to overcome this concern is to first review the option of early voting, i.e., in the in-person absentee or the mail-in ballot systems that already exist. As aforementioned, varying by state, early-in-person voting options already display a degree of voter inequality– whether or not it is an option, how long the period for early voting is open for–some five days, some fifty days–etc. Thus, even under the current system, early voters cast votes with varying levels of knowledge on the subject. On Election Day itself, in fact, voter knowledge-based inequality is visible. Some oters may be highly educated philosophy professors, while others may be young high school dropouts; some individuals may have been following unreliable, biased sources of information. There will be disparities in voter knowledge by the nature of the voting system, and the rapid spead of (mis)information in the digital era. LET will not be immune to these concerns, but through its additional educational features, it should alleviate voter-knowlege inequality, if not for the upcoming election, then for the following.

The second concern regarding voter knowledge is how it may affect voter behavior, specifically strategic voting. Voters may believe that casting their ballots earlier or later could disadvantage (or advantage) them in terms of access to information. Voters who cast ballots later may have the opportunity to consider late-breaking news and other policy announcements as well, which may cause perceived unfairness in the information provided to voters prior to the vote. Voters may adjust their voting strategies based on the initial outcomes broadcasted by LET in the early days of the election period. This may lead to Tactile Voting or the Bandwagon Effect. I believe this is the most promising concern against my system.

A. Defense

My general response to this is to acknowledge that with the rise of online communication and social media groups, strategic voting is increasingly becoming more difficult to avoid. However, I believe LET would actually help mitigate the effects of strategic voting.

First, it may be true that voters may adjust their strategies based on early results; as aforementioned, broadcasting early voting outcomes could also encourage voter turnout. High voter participation rates can act as motivation to vote, regardless of the results in play, since it will fluctuate constantly. Voters who believe the vote isn't going in the direction they hoped are as well motivated to vote, returning us to the point that LET encourages feelings of political autonomy.

Second, the concern of Tactile Voting may not be as negative a phenomenon as one may believe. Tactile Voting refers to the occurrence where voters strategically cast their ballots not necessarily for their preferred candidate but rather to achieve a specific electoral outcome– i.e., voters might strategically vote for a perceived "lesser evil" candidate to prevent the election of a candidate they view as less desirable. Tactile Voting may, in fact, reflect voters' rational choices in attempting to achieve the best possible outcome given the available options[21].

Finally, the Bandwagon Effect may occur when voters are influenced by the candidate whom they perceive as "winning," leading to voters aligning their voters with the perceived majority in hopes of voting for the winning candidate[21,27]. This can, of course, lead to an outcome that does not reflect the true beliefs of the public, which may later cause resentment and cognitive dissonance effects among the voters. However, it is important to note that the Bandwagon Effect may not be as influential as proposed; voters often have ingrained beliefs and ideologies that will not be swayed by short-term psychological effects. In fact, revisiting the early point on voter motivation, a majority trend favoring one candidate in the early stages of voting may incentivize the voters who strongly support the opposing candidate to participate, again contributing to overall increased voter turnout.

6. CONCLUSION

In this paper, I proposed extending the in-person election period for the United States presidential election, which has anticipated benefits such as prompting higher voter turnout and improved representation of minority groups. I responded to the critiques against prolonging the voting period, such as that of increased risk for voter fatigue and increased risk of fraud and mistrust, by offering a revised system that makes use of real-time vote broadcasting via the form of LET, the Live Election Tracker website. LET is expected to enhance voter participation and civic engagement–including that of the younger demographics– promote democratic education and increase transparency and trust.

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